

LW6162E: ADMIRALTY LAW: LIABILITY AND ENFORCEMENT

New Syllabus Proposal

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Admiralty Law: Liability and Enforcement

Subject Code

LW - Law

Course Number

6162E

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Additional Information

Nil

Part II Course Details

Abstract

Admiralty law is the core subject for shipping liability and enforcement. Admiralty law regulates the rights and duties of persons who trade using ships. Liability for collisions, salvage, wreck removal, towage and oil pollution are dealt with in this course. Shipowners are granted limitation of liability rights that may affect the recovery in claims against them for some of the operational claims. The subject includes many other specialised areas of the law, most of which are regulated through international conventions, but it excludes the law relating to the carriage of goods by sea and marine insurance as well as the Admiralty enforcement procedures. These are covered in separate courses. However, the enforcement of cargo and charterparty claims are dealt with under this course.

Maritime claims are dealt with under the Admiralty jurisdiction of the Court of First Instance. Some of the claims against the shipowner are supported by an action to arrest the ship (an action in rem). The admiralty enforcement procedure is an integral part of this course and includes enforcement rights as well as the priority between claimants.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Describe and analyse the liabilities arising from shipping incidents (collisions, groundings, marine pollution and wreck removal).		x	x	x
2	Understand and critically assess the legal norms supporting limitation of liability for those operating ships.		x	x	x
3	Describe the conditions under which a ship can be arrested and the consequences ship arrest has for the parties engaged in a dispute.		x	x	x
4	Consider the suitability of Admiralty law to deal with new types of marine craft.		x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Seminars	Students will engage with the legal liabilities arising from the operation of ships, the policies and the legal principles underpinning them.	1, 2, 3, 4	3 hours lecture / week

2	Guided individual studying	Students will engage with basic independent research and critical assessment skills.	1, 2, 3, 4	
3	Formative work including problems questions and quizzes	Students will engage with exam-like activities to develop the relevant legal and practical skills.	1, 2, 3, 4	

Additional Information for LTAs

3 hours lecture / week

Assessment Tasks / Activities (ATs)

ATs		CILO No.	Weighting (%)	Remarks ("- for nil entry)	Allow Use of GenAI?
1	Online Quizzes (4 x 5%) or assignment	1, 2, 3, 4	20	-	No

Continuous Assessment (%)

20

Examination (%)

80

Examination Duration (Hours)

2

Minimum Examination Passing Requirement (%)

40

Additional Information for ATsApplicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Students must obtain a minimum mark of 40% in examination and an overall mark of 40% in order to pass the course. The examination will be provided with legal materials. Students are required to use computers to type the answers. However, students are NOT allowed to access the internet nor are allowed access to notes or books except dictionaries.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain a minimum mark of 50% in examination and an overall mark of 50% in order to pass the course. The examination will be provided with legal materials. Students are required to use computers to type the answers. However, students are NOT allowed to access the internet nor are allowed access to notes or books except dictionaries.

Assessment Rubrics (AR)**Assessment Task**

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Quizzes / Assignment

Criterion

Demonstration of an ability to answer accurately specific questions, select the correct answers from a group of mixed correct and wrong answers, solve mini problems quickly and identify case law and the legal principles it supports correctly.

Excellent

(A+, A, A-) Strong evidence of accurate knowledge ; good organisation; capacity to identify correct and wrong answer quickly, superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; limited, or irrelevant use of literature.

Assessment Task

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Examination

Criterion

Demonstration of a good understanding of relevant statutes, cases, doctrines and concepts, and an ability to use these to solve complex legal problems.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organisation; capacity to organise and synthesise; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Quizzes / Assignment

Criterion

Demonstration of an ability to answer accurately specific questions, select the correct answers from a group of mixed correct and wrong answers, solve mini problems quickly and identify case law and the legal principles it supports correctly.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Fair

N/A

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Examination

Criterion

Demonstration of a good understanding of relevant statutes, cases, doctrines and concepts, and an ability to use these to solve complex legal problems.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Fair

N/A

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

Shipowner's liability, crew negligence, negligence in management, salvage, wreck removal, collisions, marine pollutions, towage, limitation of liability, Admiralty enforcement, action in rem.

Detailed Syllabus

- a. Introduction
- b. Liabilities arising from shipping incidents – basis of liability
- c. Collision regulations, good seamanship, causative potency, blameworthiness and liability for damages
- d. Salvage – International Law
- e. Salvage – Contracts and Environmental protection and Towage
- f. Marine Pollution incidents
- g. Limitation of Liability

- h. Admiralty enforcement
 - i. Action in rem, ship arrest and sister-ship arrest
 - j. Judicial sale and priorities, maritime liens.
- k. Legal norms for the development of unmanned and autonomous ships
- l. Revision

Reading List

Compulsory Readings

Title	
1	Justice Barma (eds), Maritime Law and Practice in Hong Kong (Sweet & Maxwell 2015)
2	Aleka Mandaraka-Sheppard, Modern Maritime Law (Volume 2). (3rd ed, Routledge-Cavendish 2014) - available on i-law
3	Yvonne Baatz (eds) Maritime law (5th ed, Informa, 2020)
4	Baughen, S. (2023). Shipping law (8th ed.). Milton Park, Abingdon, Oxon ; New York, NY: Routledge.
5	Lloyd' s Maritime and Commercial Law Quarterly
6	The Journal of International Maritime Law